

25STCV10693 25STCV10693

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV10693 Hearing Date: July 16, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

TERRI

DAY,

vs.

LUIS

MORA, II, et al.

Case No.:

25STCV10693

Hearing Date: July 16, 2026

Defendant Los Angeles Dodgers LLC's unopposed

motion for leave to file a cross-complaint against Defendants Luis Mora and

McLaughlin Gormley King Company is granted.

Defendant Los Angeles Dodgers LLC may file the proposed cross-complaint

with the Court, deemed filed as of July 16, 2026.

Defendant Los

Angeles Dodgers LLC ("Dodgers") ("Moving Defendant")

moves unopposed for an order granting leave to file a cross-complaint ("XC") against Defendants Luis Mora, II ("Mora") and McLaughlin Gormley King Company ("MGKC") (collectively, "Non-moving Defendants"). (Notice of Motion, pg. 2; C.C.P. §426.50.)

Procedural

Background

On April 10, 2025, Plaintiff Terri Day ("Terri") ("Plaintiff") filed a complaint in the instant matter against Moving Defendant and Non-Moving Defendants for two causes of action: (1) motor vehicle negligence, and (2) general negligence arising from injuries Plaintiff Terri sustained after Defendant Mora struck Plaintiff with his vehicle on Vin Scully Avenue. Plaintiff subsequently filed the operative First Amended Complaint ("FAC"), which included second Plaintiff, Jason Day ("Jason") ("Plaintiff") on the pleading, and added a third cause of action for loss of consortium.

On March 27, 2026, Third-Parties SP Plus Corporation ("SP Plus") and Metropolis Technologies, Inc. ("Metropolis") (collectively, "SP Cross-Complainants") filed a cross-complaint ("SP XC") against Non-moving Defendants for three causes of action: (1) comparative indemnity; (2) contribution; and (3) declaratory relief.

Moving Defendant

filed the instant motion on April 23, 2026, for leave to file a proposed XC against Non-moving Defendants for two causes of action: (1) equitable indemnification, and (2) equitable contribution. As of the date of this hearing no opposition has been filed.

Motion for Leave to Amend

C.C.P.

§426.50 provides:

A

party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.

(C.C.P.

§426.50, emphasis added.)

A

motion to file a compulsory cross-complaint must be granted unless bad faith of the moving party is demonstrated. (See C.C.P. §426.50; *Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-99 [even on the “eve of trial,” leave to file a compulsory cross-complaint is mandatory absent a substantial showing of bad faith]; see also *Sidney v. Superior Court* (1998) 198 Cal.App.3d 710, 718 [leave to file a compulsory cross-complaint is liberally permitted].)

Judicial

policy favors resolution of all disputed matters between the parties in the same lawsuit. Courts exercise liberal discretion to allow leave file a cross-complaint. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939; *Mabie v. Hyatt* (1998) 61 Cal.App.4th 581, 596.) “If the motion to amend is timely made and the granting of the motion will prejudice the opposing party, it is error to refuse permission to amend.” (See *Redevelopment Agency v. Herrold* (1978) 86 Cal.App.3d 1024, 1031, internal citations omitted [holding that “where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”].)

A

cross-claim is compulsory if it (1) exists at the time its proponent served its answer in the underlying action and (2) relates to a cause of action asserted

by the plaintiff. (ZF Micro Devices, Inc. v. TAT Capital Partners, Ltd. (2016) 5 Cal.App.5th 69, 81.) Courts interpret the “relatedness” prong broadly to include “a cause of action which arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in his complaint.” (Id., citing C.C.P. §426.10(c).)

Here,

Moving Defendant’s claims arise from the exact same incident as Plaintiff’s lawsuit—specifically the injury Plaintiff sustained by being struck by a vehicle driven by Defendant Mora. The claims for equitable indemnity and contribution are inherently related to the main action, as they seek to allocate fault for the same alleged harm. (Time for Living, Inc. v. Guy Hatfield Homes/All American Development Co. (1991) 230 Cal.App.3d 30, 38 [“Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action.”].)

Moving

Defendant brings this motion in good faith and has acted in good faith given that it promptly brings this motion after confirming the identity of the driver of the vehicle, reviewing surveillance footage related to the incident, investigating the allegations related to the incident, and reviewing discovery responses by the parties to the matter. (Decl. of Robie ¶4.) Moving Defendant’s “words or conduct” do not “suggest[] dishonest purpose, moral obliquity, sinister motive, furtive design or ill will,” and therefore there is no finding of bad faith. (Silver Organizations Ltd., 217 Cal.App.3d at pg. 100.)

Based

on the foregoing, Moving Defendant’s motion for leave to file its XC against Non-moving Defendants is granted.

Conclusion

Moving

Defendant’s unopposed motion for leave to file its XC is granted. Moving Defendant may separately file the proposed XC with the Court, deemed filed as of July 16, 2026.

Moving Party to give notice.

Dated: July _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court